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IN THE DISTRICT COURT OF JOHNSON COUNTY, KANSAS
CRIMINAL DEPARTMENT

STATE OF KANSAS,

Plaintiff,

vs.

SCOTT P. MOORE,

Defendant.

Case No. 10CR2633
Appellate No.: 13-109787-A

TRANSCRIPT OF JURY TRIAL PROCEEDINGS
(Day 3, Volume III)

PROCEEDINGS HAD before the HONORABLE BRENDA CAMERON,
Judge of Court 13 of the Tenth Judicial District of the State
of Kansas at Olathe, Kansas, and a jury of six, January 14th
through 16th, 2013.

APPEARANCES:

The Plaintiff appeared by Ms. Erika Rasmussen and Ms.
Heather Jones, Assistant District Attorneys, Office of the
District Attorney, Johnson County Courthouse, 100 N. Kansas
Avenue, Olathe, Kansas.

The Defendant appeared in person and by Mr. Kevin E. J.
Regan from The Regan Law Firm, 1821 Wyandotte, Suite 200,
Kansas City, Missouri.

REPORTED BY GLORIA J. O'MALLEY, CSR, CCR

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1 * * * * * P R O C E E D I N G S * * * * *

2 (Whereupon, the following proceedings
3 occurred in the courtroom without the presence of the jury.)

4 THE COURT: The State of Kansas versus
5 Scott P. Moore, 10CR2633.

6 MS. RASMUSSEN: May it please the Court,
7 the State of Kansas appears by Erika Rasmussen and Heather
8 Jones.

9 MR. REGAN: May it please the Court,
10 prosecution, Mr. Moore appears with counsel, Kevin Regan.

11 THE COURT: Thank you. We're here to take
12 up some last minute issues before we take up arguments without
13 the jury.

14 Defendant's B that the defendant proffered yesterday, I
15 did have a chance to review that, and I find that it is not
16 admissible. I don't find any relevance to it, and that will
17 be excluded for the record.

18 Regarding the instructions, Instruction No. 9, which is
19 PIK 51.080 about the defendant not testifying, I believe I am
20 including that. The defendant requested that I not, but I am
21 going to give that one just to be clear.

22 In addition, Jury Instruction No. 10, which is the
23 eyewitness identification instruction that the defendant
24 requested, PIK 51.110, I am going to give that one, but I have
25 added one of the factors which is in PIK 3, but not in PIK 4.

1 So I believe Ms. Nelson gave you a new copy of that one.

2 MS. RASMUSSEN: Yes, she did.

3 MR. REGAN: Yes.

4 THE COURT: Six and Seven, six is one that
5 is not in PIK 4. It is in PIK 3, and I am giving that one.
6 Any objection to that?

7 MS. RASMUSSEN: Which one?

8 THE COURT: Pick 3 includes an extra
9 element -- well, in PIK 4 there are six factors.

10 MS. RASMUSSEN: Oh, yeah, in the eyewitness
11 one?

12 THE COURT: Yes.

13 MS. RASMUSSEN: The State has no objection.

14 THE COURT: Mr. Regan, any objection?

15 MR. REGAN: No, ma'am.

16 THE COURT: There was an instruction that
17 the defendant inserted in his packet, 52.21, about the weight
18 and credit to be given the witness Nicholas Koch. That is an
19 instruction to be given when there's a child victim who is
20 unavailable. So that's not the case here, and I'm not going
21 to give that one.

22 Were there any other instructions after having the
23 evening to look at them? Are there any additions, corrections
24 to the instructions?

25 MS. RASMUSSEN: The only one I would ask

1 about is the jury instruction, and I believe it will be number
2 eleven about the element of intent.

3 THE COURT: Yes.

4 MS. RASMUSSEN: That is significantly
5 different between PIK 3 and 4. I'd like to know defense's
6 position on which one to use. The State won't have objection
7 to either one.

8 MR. REGAN: I think the books indicate,
9 Judge, that the appropriate instructions to give for cases
10 happening before a certain cut-off date would be out of PIK 3,
11 and that's what we would suggest that the Court do.

12 THE COURT: We'll look at that. Go ahead.

13 MR. REGAN: While we have a break in
14 action, maybe we can make a little record.

15 THE COURT: Yes.

16 MR. REGAN: Do you know about the defense's
17 objection to the submission of Instruction No. 9 and regarding
18 Exhibit B? It would have been our intention to show the
19 exhibit to Nicholas Koch during our cross-examination of him
20 in front of the jury and ask him if he recognized the exhibit,
21 and then lay appropriate foundation, which I believe we would
22 have and play it for the jury with your permission.

23 THE COURT: That will be noted. I know
24 that was your intention with the proffer, and everyone was
25 trying to get together and move things along, which I

1 appreciate.

2 That will be noted for the record that was the juncture
3 that you asked that it be admitted. We delayed ruling on that
4 just in an effort to be efficient, which again I appreciate,
5 and your proffer will be noted.

6 MR. REGAN: One more time, I reviewed the
7 PowerPoint that the prosecutor intends to review for the jury
8 in closing argument, and would you please note our continuing
9 objection to the admission of 60-455 evidence and now the
10 comment on the closing argument so that I'm not objecting
11 needlessly throughout the State's argument, that that be a
12 continuing objection through closing argument.

13 THE COURT: Yes, that will be noted, and
14 you don't need to make further objection. For the record, it
15 is noted for appellate purposes that your objection will be
16 continued throughout closing argument. I do have an
17 instruction regarding 60-455. We will ask that the State
18 confine their comments, of course, for the purposes as noted
19 in the instruction as allowed by law.

20 MS. RASMUSSEN: And, Your Honor --

21 THE COURT: Yes.

22 MS. RASMUSSEN: -- as far as the intent of
23 the instruction goes, in PIK 3 it will be 54.01.

24 THE COURT: Okay. We'll get that one
25 quickly. Thank you for pointing that out. We had the PIK 4

1 included, which is different than PIK 3, so we will replace
2 that with Jury Instruction No. 11.

3 Is there anything else for the record that we need to
4 take up?

5 MR. REGAN: I don't think so.

6 MS. RASMUSSEN: Nothing further by the
7 State.

8 THE COURT: Thank you. Very good. I do
9 have a stopwatch here on my phone. You will both be given
10 twenty minutes. Is that still your request?

11 MR. REGAN: Yes.

12 MS. RASMUSSEN: Yes.

13 THE COURT: With a one-minute warning;
14 correct?

15 MR. REGAN: Yes.

16 MS. RASMUSSEN: Yes.

17 MR. REGAN: Are we still waiting on that
18 one juror, Judge?

19 THE COURT: We are waiting on one juror who
20 is stuck in traffic. He had not arrived as I came out. Ms.
21 Nelson will redo Instruction No. 11, and we'll review that for
22 you. As soon as the juror gets here, we'll get started. I
23 would like to say, Counsel, that I will compliment you both.
24 You all did a fantastic job that I expect of both, of all of
25 you, and I appreciate it.

1 (Whereupon, a recess was taken at 9:05
2 a.m., and resumed without the presence of the jury at 9:20
3 a.m.)

4 THE COURT: We are back on the record in
5 State of Kansas versus Scott P. Moore, 10CR2633. Parties
6 appear as before, including the defendant with Mr. Regan.

7 I believe the instruction packet is now complete. I have
8 replaced Instruction No. 11 with 54.01, the intent instruction
9 from PIK 3. Does this meet with your approval, Counsel?

10 MR. REGAN: Yes.

11 MS. RASMUSSEN: Yes.

12 THE COURT: This was the one you were
13 requesting; correct, Mr. Regan?

14 MR. REGAN: Yes, ma'am, correct.

15 THE COURT: Any other corrections,
16 additions or suggestions for the instructions?

17 MS. RASMUSSEN: I don't believe so.

18 MR. REGAN: No, thank you.

19 THE COURT: Any other matters before
20 bringing the jury in?

21 MS. RASMUSSEN: Nothing from the State.

22 MR. REGAN: No, ma'am.

23 THE COURT: Okay. Bring them in.

24 (Whereupon, the jury entered the courtroom
25 at 9:21 a.m.)

1 THE COURT: The State of Kansas versus
2 Scott P. Moore, 10CR2633.

3 MS. RASMUSSEN: May it please the Court,
4 the State of Kansas appears by Erika Rasmussen and Heather
5 Jones.

6 MR. REGAN: May it please the Court,
7 Counsel, ladies and gentlemen, may it please the Court, Mr.
8 Moore appears in person with counsel, Kevin Regan.

9 THE COURT: We are back in here. The jury
10 is in place. Thank you. We are here for closing argument
11 now. The evidence is in. We have instructions. We've gone
12 over that, and I will instruct you on the law as it applies.
13 You will be given a copy of these instructions when you go
14 back to the jury room. Don't worry about that.

15 Regarding the closing arguments, both parties have
16 requested twenty minutes for closing argument. The State can
17 split their argument in two parts, as they have the burden of
18 proof. They have elected to do that. Ms. Rasmussen has asked
19 for twelve minutes and eight, and the defense has asked for
20 twenty minutes, and Mr. Regan has asked for a warning at five
21 minutes and one minute. Ms. Rasmussen has asked for a
22 one-minute warning. So I have my phone as a fancy stopwatch.
23 I'm not here texting or tweeting. I don't do that, and I will
24 be looking at that, and I don't want to be rude, and they have
25 asked for a warning, and I will give that to them at the

1 appropriate time.

2 These are the jury instructions:

3 Jury Instruction No. 1: It is my duty to instruct you in
4 the law that applies to this case, and it is your duty to
5 consider and follow all of the instructions. You must decide
6 the case by applying these instructions to the facts as you
7 find them.

8 Jury Instruction No. 2: In your fact finding you should
9 consider and weigh everything admitted into evidence. This
10 includes testimony of witnesses, admissions or stipulations of
11 the parties, and any admitted exhibits. You must disregard
12 any testimony or exhibit which I did not admit into evidence.

13 Jury Instruction No. 3: At times during the trial, I
14 have ruled upon the admissibility of evidence. You must not
15 concern yourself with the reasons for these rulings. I have
16 not meant to indicate any opinion as to what your verdict
17 should be by any ruling that I have made or anything that I
18 have said or done.

19 Jury Instruction No. 4: Statements, arguments and
20 remarks of counsel are intended to help you in understanding
21 the evidence and in applying the law, but they are not
22 evidence. If any statements are made that are not supported
23 by evidence, they should be disregarded.

24 Jury Instruction No. 5: Your only concern in this case
25 is determining if the defendant is guilty or not guilty. The

1 disposition of the case thereafter is a matter for
2 determination by the Court.

3 Jury Instruction No. 6: The State has the burden to
4 prove the defendant is guilty. The defendant is not required
5 to prove he is not guilty. You must presume that he is not
6 guilty unless you are convinced from the evidence that he is
7 guilty.

8 The test you must use in determining whether the
9 defendant is guilty or not guilty is this: If you have a
10 reasonable doubt as to the truth of any of the claims required
11 to be proved by the State, you must find the defendant not
12 guilty. If you have no reasonable doubt as to the truth of
13 each of the claims required to be proved by the State, you
14 should find the defendant guilty.

15 Jury Instruction No. 7: Evidence has been admitted
16 tending to prove that the defendant committed crimes other
17 than the present crimes charged. This evidence may be
18 considered solely for the purpose of proving the defendant's
19 identity, opportunity, a lack of a mistake or accident, or
20 plan or modus operandi.

21 Jury Instruction No. 8: It is for you to determine the
22 weight and credit to be given the testimony of each witness.
23 You have a right to use common knowledge and experience in
24 regard to the matter about which a witness has testified.

25 Jury Instruction No. 9: A defendant in a criminal trial

1 has a constitutional right not to be compelled to testify.
2 You must not draw any inference of guilt from the fact that
3 the defendant did not testify, and you must not consider this
4 fact in arriving at your verdict.

5 Jury Instruction No. 10: The law places the burden upon
6 the State to identify the defendant. The law does not require
7 the defendant to prove he has been wrongly identified. In
8 weighing the reliability of eyewitness identification
9 testimony, you first should determine whether any of the
10 following factors existed and, if so, the extent to which they
11 would affect accuracy of identification by an eyewitness.
12 Factors you may consider are:

13 1. The opportunity the witness had to observe. This
14 includes any physical condition which could affect the ability
15 of the witness to observe, the length of the time of
16 observation, and any limitations on observation like an
17 obstruction or poor lighting;

18 2. The emotional state of the witness at the time
19 including that which might be caused by the use of a weapon or
20 a threat of violence;

21 3. Whether the witness had observed the defendant on
22 earlier occasions;

23 4. Whether a significant amount of time elapsed
24 between the crime charged and any later identification;

25 5. Whether the witness ever failed to identify the

1 defendant or made any inconsistent identification;

2 6. The degree of certainty demonstrated by the
3 witness at the time of any identification of the accused; and

4 7. Whether there are any other circumstances that may
5 have affected the accuracy of the eyewitness identification.

6 Jury Instruction No. 11: Ordinarily, a person intends
7 all of the usual consequences of his voluntary acts. The
8 inference may be considered by you along with all the other
9 evidence in the case. You may accept or reject it in
10 determining whether the State has met its burden to prove the
11 required criminal intent of the defendant. This burden never
12 shifts to the defendant.

13 Jury Instruction No. 12: Count 1, the defendant is
14 charged with the crime of sexual battery. The defendant
15 pleads not guilty.

16 To establish this charge, each of the following claims
17 must be proved:

18 1. That the defendant intentionally touched the
19 person of N.M.K.;

20 2. That the touching was done with the intent to
21 arouse or to satisfy the sexual desires of the defendant;

22 3. That N.M.K., was not the spouse of the defendant.

23 4. That N.M.K., did not consent to the touching;

24 5. That N.M.K., was then 16 or more years of age; and

25 6. That this act occurred on or about the 15th day of

1 May, 2010, in Johnson County, Kansas.

2 Jury Instruction No. 13: Count 2, the defendant is
3 charged with the crime of sexual battery. The defendant
4 pleads not guilty.

5 To establish this charge, each of the following claims
6 must be proved:

7 1. That the defendant intentionally touched the
8 person of N.M.K;

9 2. That the touching was done with the intent to
10 arouse or to satisfy the sexual desires of the defendant;

11 3. That N.M.K., was not the spouse of the defendant;

12 4. That N.M.K., did not consent to the touching;

13 5. That N.M.K., was then 16 or more years of age; and

14 6. That this act occurred on or between the 1st day
15 of December, 2009, and the 31st day of December, 2009, in
16 Johnson County, Kansas.

17 Jury Instruction No. 14: Each crime charged against the
18 defendant is a separate and distinct offense. You must decide
19 each charge separately on the evidence and law applicable to
20 it, uninfluenced by your decision as to any other charge. The
21 defendant may be convicted or acquitted on any or all of the
22 offenses charged. Your finding as to each crime charged must
23 be stated in a verdict form signed by the presiding juror.

24 Jury Instruction No. 15: Once you retire to the jury
25 room, you will be provided with these instructions. All

1 future communications to the Court should be in writing and
2 delivered to the bailiff to be taken up in the courtroom and
3 recorded by the court reporter. You will find a call buzzer
4 located by the door in the jury room should you need the
5 bailiff for any reason.

6 Jury Instruction No. 16: When you retire to the jury
7 room, you will first select one of your members as presiding
8 juror. This person selected will preside over your
9 deliberations, will speak for the jury in court and will sign
10 the verdict upon which you agree.

11 Your verdict must be founded entirely upon the evidence
12 admitted and the law as given in these instructions.

13 Your agreement upon a verdict must be unanimous.

14 Signed here in court, Brenda M. Cameron, District Court
15 Judge.

16 The last two pages are the verdict forms upon which you
17 will agree unanimously and signed at the bottom.

18 You are now ready for closing argument. Ms. Rasmussen.

19 MS. RASMUSSEN: May I move this forward?

20 THE COURT: Yes.

21 MS. RASMUSSEN: May it please the Court,
22 Counsel, members of the jury, we are here today on the case of
23 State v. Moore. This is a case where history repeats itself.

24 In the case of the defendant, history repeated itself in
25 2005, 2006, 2009 and in 2010. It's repeated itself a lot.

1 You've heard a lot of evidence. Let's go through the evidence
2 that you've heard.

3 First, let's talk about 2005. You heard the testimony of
4 Jordan Galbraith. He woke up in the middle of the night while
5 at church camp, the church camp that this defendant was the
6 cabin leader, to feel pressure on his privates. He believed
7 it to be hands touching his penis. His penis was inverted
8 into the waistband of his boxers. He saw a large man in the
9 room.

10 Keep in mind, the evidence that you heard was that the
11 defendant was much larger back then, much stockier.
12 The man had a flashlight. He sees the man leaning over
13 another camper shining his flashlight on the other camper's
14 face and on his sleeping back bag, then back to his face. The
15 man starts to reach out. Jordan, scared, calls out the name
16 "Scott" and tries to stop this act from happening because he
17 believed that the man standing there is Scott.

18 The man leaves the room. A short time later, Scott came
19 in the room and said he heard yelling.

20 Meanwhile in a room nearby, fifteen-year-old Kyle Heslop
21 is sleeping. You heard his testimony. You'll also get the
22 chance to read a written statement he made back in 2006. Look
23 at this: I kind of half woke up when a flashlight shined in
24 my face. There was a man standing nearby my bed. He was
25 really close with his hands in my sleeping bag. I got creeped

1 out, so I didn't move. He tried to reach further into my
2 sleeping back near my crotch. He put his flashlight towards
3 my face.

4 You'll be able to read that entire statement of Kyle
5 Heslop and review his testimony.

6 What happens? Well, the next day the kids try and report
7 it to a camp counselor. They don't get to that person in
8 time, but who finds out about it? Lee Jost, the defendant's
9 buddy. So that's who they report it to.

10 Jost, how does he respond? That night he delivers a
11 sermon at the entire camp and calls out, as Kyle put it,
12 Jordan and Kyle, for them going to him and trusting him to
13 investigate this matter, to listen to them. Mr. Jost didn't.
14 Instead he had chosen to embarrass the boys publicly. How
15 must they have felt?

16 So then they get back, and this church does an
17 investigation. That investigation is done by Nancy Brown and
18 Randy Meyer. They don't have the boys write out statements in
19 their own words. What do they do? They compile a report of
20 their interviews, notes for the internal investigation at the
21 church. Keep in mind this is a church that is a connected
22 church to all of the Methodist churches in Kansas. No police
23 reports were made in 2005. No report is made to Children's
24 Protective Services, to an outside agency to investigate this
25 matter. Nope, open and shut, they just decide the kids

1 couldn't identify Scott Moore for sure. Scott Moore is such a
2 great guy.

3 What do they do? They allow him to remain a volunteer at
4 the church. The defendant was an avid volunteer with the
5 youth of the church and Scouts.

6 In 2006 though, history repeats itself. You heard from
7 several boys. They were at the church retreat in 2006. There
8 were two nights involved in this. So let's first talk a
9 little bit about Friday night. You'll have Ben Gooding's
10 written statement to review.

11 Friday night, the 3rd of November, Ben Gooding said he
12 saw a man with a light. He was shining a flashlight at Collin
13 for a few seconds. Then he bent down and shined the light on
14 Tommy. He shined the light back on Collin. Collin started
15 moving. He saw that it was Scott. Ben Gooding saw in 2006
16 this defendant shining a flashlight on Collin and Tommy.

17 So let's talk about Collin Williams on Friday night. He
18 has a very long written statement that you'll be able to
19 review. He sees a figure with a clicky flashlight looking
20 over at Ben and Bret's bunk, the bunk beside him, and he
21 wasn't sure how long he was there for. He spent several
22 minutes later bent over, squatting and looking at Tommy
23 occasionally shining his flashlight. Collin thought he heard
24 the sound of elastic slapping.

25 You've heard the testimony of each of those boys. There

1 was no loud humidifier that would obstruct their ability to
2 hear. Collin very clearly says, "I heard the sound of
3 elastic. Once he finished with Tommy, he stood up and looked
4 straight at me. He had the shape and outline and haircut of
5 Scott, and he was the same weight."

6 Now, let's look at what else Collin has to say. "The
7 figure shined his flashlight on the lower half of my body. He
8 only shined it for a second. He then started making his way
9 under my sheets with his hands. I immediately sprung up."

10 Collin stopped the defendant before he touched him. The
11 figure vanished. "Five seconds later, I heard Scott say 'I
12 thought I heard something.'"

13 Look at Bret Kingcade. The first night of the retreat he
14 testified that he doesn't know if anyone touched him. What he
15 does remember is he went to sleep with the sleeping bag zipped
16 up. He woke up with it unzipped. He didn't unzip it himself
17 in the middle of the night.

18 Tommy Chaney, fifteen years old. He very clearly says,
19 "I don't know what happened Friday night. I know I was asleep
20 the whole night. I noticed that Bret's sleeping bag," Bret
21 Kingcade, "another guy in our room was in a weird position."

22 So what does Tommy say about Saturday night? You heard
23 his testimony. On Saturday night Tommy Chaney slept with his
24 flashlight because of the defendant. He was lying in bed
25 asleep, and he felt someone poke him. He turned around,

1 surprised that person, shined a flashlight on him. He saw it
2 was Scott Moore. He writes in his written statement, "I am
3 one hundred percent sure it was Scott."

4 What does the defendant do? He doesn't say: Oh, Tommy,
5 I thought maybe you left the room. I was making sure you were
6 there. No, he books it out of the room.

7 So this time this activity is reported to church
8 officials. Well, history repeated itself. This time law
9 enforcement was contacted, an investigation was conducted.
10 The church was notified, and the defendant's certification as
11 a volunteer at the church was revoked. No charges were filed.

12 The defense counsel will make a big deal out of that.
13 The defendant wasn't charged back for the 2005/2006 incident.
14 What a big feat for an elected official to take on a case that
15 is going to slander the name of a church and how they
16 responded to these disclosures over two years.

17 So in 2009 what happens? History repeats itself. Now
18 you have Nick Koch, and we're getting into the crimes that the
19 defendant is charged with. You heard Nick Koch on the stand.
20 You heard what Nick Koch told his mother. You heard that he
21 made a written statement. You've watched his Sunflower House
22 interview. Look back at those things. What has Nick
23 repeatedly said?

24 Nick was sixteen. The information he put in his written
25 statement about December: He was at a sleep over. "I got

1 woken up because I felt something push down the cushions
2 around my groin. I saw Mr. Moore, and he said 'Sorry, I was
3 looking for the remote.' I didn't mind anything of it.
4 Because I was still sleep. Looking back at it now, after what
5 happened in 2010, it's disturbing."

6 In 2009, Nick Koch did not immediately report this
7 incident. Why? He liked the defendant. He trusted the
8 defendant. He wanted to give him the benefit of the doubt.
9 He wanted to believe that this defendant was just looking for
10 the remote control.

11 You heard his testimony. He was touched. The hands were
12 between the couch cushions and his body. He was being touched
13 in the groin area. He accepted the defendant's statements at
14 that time. He thought the defendant was only looking for the
15 remote control. So what happens in 2010? History yet again
16 repeats itself.

17 Nick Koch was staying the night at the defendant's house
18 with his son, Preston. He was awakened that night. First he
19 was awakened by what seemed like a camera flash. He didn't
20 have his eyes open, but he saw two flashes of light. A few
21 seconds later, he felt a tap on his groin area. He testified
22 in court, although obviously not something fun to say by
23 "groin area," he meant "penis." He said, "I kind of like
24 peeked and saw a hand, and then I heard footsteps going up the
25 stairs, heavy footsteps." He wakes up a couple -- or I

1 shouldn't say wakes up -- opens his eyes seconds later, and
2 Preston is asleep and Marcus is asleep.

3 Now, this time history doesn't repeat itself because Nick
4 Koch tells. He tells someone.

5 Now, did he get the defendant out of his bedroom and
6 confront him and say: "You just touched my groin"? No, he
7 was scared.

8 Did he wake up Preston and say: Hey, buddy, your dad
9 just touched my groin? No. You heard him testify. He didn't
10 want to hurt Preston any more than Preston would be hurt. Who
11 does Nick tell? Nick tells his mom.

12 After he had gotten her to allow him to stay the night
13 with his friends, he gets up in the middle of the night, by
14 all accounts, and he gets in touch with his mom and has her
15 come pick him up from the house.

16 THE COURT: One minute.

17 MS. RASMUSSEN: The State has the burden to
18 prove that the defendant is guilty. These are the
19 instructions you're going to hear. When you look at this,
20 look at reasonable doubt.

21 Of claims required to be proved by the State, if you have
22 a reasonable doubt of any of the claims, you must find the
23 defendant not guilty. If you have no reasonable doubt of any
24 of the claims, you should find the defendant guilty.

25 What are the claims? I'm going to speed through these a

1 little bit, and I'll get a chance to speak with you, but the
2 Judge has read them to you, and there are two specific
3 incidents, on the 15th of May 2010, and then in December of
4 2009.

5 Very quickly, let's go into the evidence of 2005 and
6 2006, how can that be used in this? Your Honor, if I go over,
7 can I --

8 THE COURT: Yes, you may.

9 MS. RASMUSSEN: If the evidence has been
10 admitted tending to prove that the defendant committed crimes
11 other than the present crimes charged, this evidence can be
12 considered solely for the purposes of proving the defendant's
13 identity in these crimes, his opportunity to commit these
14 crimes, a lack of mistake or accident or plan or modus
15 operandi.

16 What is plan or modus operandi? What happens, method of
17 operation, how one does things.

18 Look at 2005, fifteen-year-old boys, boys sleeping, dark
19 room, flashlight, touching of the groin area.

20 In 2006, fifteen- and sixteen-year-old-boys sleeping in a
21 dark room, a flashlight, attempted touching of the groin area.

22 In 2009, a sixteen-year-old boy, boy sleeping, a dark
23 room, touching of the groin area.

24 In 2010, a sixteen-year-old boy, boy sleeping, a dark
25 room, a flash of light, touching of the groin area. What do

1 all four of these things have in common? The defendant. This
2 is his modus operandi.

3 So I'll get a chance to come back and speak with you for
4 a few minutes. After Mr. Regan has spoken to you, ask
5 yourself this: Is this just really bad luck for the
6 defendant? Is he the winner of the bad lottery of 2005?
7 2006? 2009? 2010? Horrible luck? Or is this a case where
8 history repeated itself?

9 MR. REGAN: May it please the Court,
10 Counsel, Ladies and Gentlemen of the Jury, I'd like to ask you
11 a question. You can't answer it, but I hope you can answer it
12 to yourself: Are your minds still open? I hope they are
13 because you promised on Monday that you would be until the
14 case was over.

15 I would bet you a dollar that you're the only jury in
16 this building that's being asked to try three cases in the
17 same week.

18 The State has not only submitted to you the one case
19 involving Nick Koch, but they have also submitted to other
20 cases. I must tell you that these cases are very difficult to
21 defend because you've got arrows or rocks or bullets coming at
22 you from all sides. Evidence coming from 2005, 2006, 2009 and
23 2010 involving all these kids.

24 And this other crimes evidence that the Judge has
25 instructed you about, and you'll read the instruction about,

1 has been called by members of our Supreme Court the most
2 dangerous evidence in the case.

3 In Kansas it's called 60-455. In Federal Courts it's
4 called 404(b). But it's evidence that's so dangerous because
5 human nature being what it is, some folks will say: Well, if
6 somebody was alleged to have done this, they must have done
7 that. And that's why the Judge has instructed you that it can
8 only be accepted for a limited purpose.

9 I'm going to tell you a little secret. You guys may not
10 know this, but Johnson County jurors are the most feared
11 jurors in the metropolitan area in criminal cases. Johnson
12 County jurors are very well educated. Most of them have
13 college degrees. Many of them have a master's degree. Most
14 are conservative. Most are Republican. Versus Jackson
15 County, Wyandotte County, other places where a lot of criminal
16 defense lawyers don't like coming out here because of what can
17 happen. You are known as law and order jurors.

18 In this case I think that's a good thing, and I welcome
19 that because if I have a law and order jury, they are going to
20 follow the law of Judge Cameron and the laws of the State and
21 the laws we talked about on Monday and render a fair verdict
22 in this case.

23 So let's talk about what's a fair verdict in this case.
24 My client is not charged with what happened in 2005 or 2006.
25 He's actually charged for something and the sequence with

1 Count I, something that happened in 2009; and Count II for
2 something that's alleged to have happened in 2010.

3 So let's talk about what he is charged with first.
4 Because I will submit to you that what the State is doing is
5 throwing up a bunch of evidence on the wall and asking you
6 what's going to stick.

7 I will submit to you that they are using these other
8 crimes as evidence to shore up a horribly weak case.

9 Let's pretend for a minute, if you can, let's set out the
10 ancient stuff, the six- and seven-year stuff aside for a
11 moment, and let's try the case that I'm supposed to be trying.

12 Is Nick Koch telling you the truth or not?

13 I submit to you if I told you that anyone you know and
14 trust had a dinner party with his son, had some friends, kids
15 over, took another boy home one-on-one and no complaints were
16 made about that, and his loving wife of many years is going to
17 graduate with her master's degree the next day, and there's a
18 big cause for celebration, he's going to say goodnight to his
19 son and his son's two friends, go upstairs to sleep with his
20 wife, leave his only son sitting here asleep in his chair, and
21 then sneak in under a color of darkness in an area that is so
22 tight that he'd have to wake his son up to walk through it or
23 wake the other boy, Marcus, up walking through over here and
24 take a picture of the boy while he's asleep and then sneak
25 back upstairs. If I told you that story, you'd say, "Kevin,

1 you're crazy. I don't believe that. How could that happen?
2 Why would that happen?"

3 If I told you that the boy said that there were pictures
4 taken, and that the whole family looked to see if there were
5 any pictures on any family camera, you would say, "Wait a
6 minute, that whole story doesn't make sense."

7 I think you'll agree with me that this story doesn't make
8 any sense. And if you dissect what was said versus what was
9 said by other witnesses, now it's time to take that measuring
10 stick we talked about in voir dire called "beyond a reasonable
11 doubt." It's the State's burden to prove that Mr. Moore did
12 everything they say he did beyond any reasonable doubt.

13 If you go to Count I, which is the Christmas count, to
14 begin with none of these allegations have any evidence of any
15 kind proving sexual gratification by anybody or for anybody at
16 all times. All these kids had all their clothes on. At all
17 times Mr. Moore allegedly had all his clothes on, and nobody
18 was touching their own privates to gratify themselves. I'm
19 sorry to speak graphically, but this case requires it.

20 You'll recall regarding Count I, an alleged Christmas
21 incident. He said whatever happened happened with hands down
22 and palms up, nobody is grabbing anything. Nick said on the
23 Sunflower House tape he does not recall being touched. I
24 think Scott Moore is not guilty regarding this Count I.

25 Regarding Count II, which I called in voir dire "the big

1 case," which is what most of the evidence in this case has
2 been about. If you just listen to what happened, we gave you
3 a lot of evidence. I think we gave you twenty-some witnesses
4 and over twenty exhibits in two days. We all worked hard to
5 give you the best evidence we can so you can go out and
6 deliberate this morning.

7 Let's look through what was said here this morning and
8 see what we have and see if it makes sense. Did anything seem
9 inappropriate between Nick and Scott that night? No.

10 Did anything seem inappropriate between Nick and Scott on
11 times previous to this? No.

12 Did anything seem inappropriate between Scott and Nick
13 throughout dinner and the movie? No.

14 What kind of turned the tide against Scott in the
15 conversation on the way home about some trouble Nick was in at
16 school, and Nick became resentful and didn't like it.

17 So what do he have? Do we have a troubled boy reaching
18 out for attention and a cry for help?

19 Is it a way to act out on his anger against Mr. Moore for
20 sticking his nose in his business? I have no idea. I wasn't
21 there and neither were you, but we need to try to bring this
22 case to life.

23 What you do have is the uncorroborated word of somebody
24 against and man, who by all accounts from the State's own
25 witnesses, some of them, is a good guy, a trusted family

1 friend, a hard worker and a volunteer in certain things in our
2 community who had not been in trouble before, who is loved by
3 his family.

4 So is this boy a troubled youth acting out and making
5 things up? I have no idea, but you have no corroboration of
6 what he says. There should have been a picture on one of
7 those cameras. There should have been a picture on his
8 computer, but none was found. What does that tell you? No
9 pictures were taken.

10 These are little things, but they add up. He told you
11 that Mr. Moore had a black, fancy camera. None existed in
12 that house. Is he going to be taking pictures of some kid
13 with his clothes on down on the couch while his son is sitting
14 right next to him? That doesn't make any sense.

15 Now, whatever your verdict is today, it lasts. You guys
16 can't come back next week and say: Hey, I thought about this,
17 and I change my mind. That's an injustice.

18 I'm here to tell you that in my opinion, all your
19 opinions, sexual misconduct is wrong. It's a bad thing. I
20 tell you that as a parent, as a husband and as a grandparent.
21 I'm involved in a lot of civic stuff myself. That's wrong.
22 We all agree with that.

23 But what is also wrong is convicting somebody when the
24 State has failed to meet its burden. Convicting an innocent
25 man is also wrong. Once you ring that bell, you can't unring

1 it. The injustice of an unjustly accused man is a horrible
2 thing.

3 There's been a story in our news the last couple of weeks
4 about a man who did twenty years for murder who didn't do it
5 and was just released last week --

6 MS. RASMUSSEN: Your Honor, objection.
7 This is improper.

8 MR. REGAN: We are allowed to argue matters
9 of common knowledge. It's in the front page news story.

10 THE COURT: It is in the evidence before
11 this Court that we're getting into in this case. I don't
12 think it's relevant in this case. I'll allow some latitude,
13 but the case was twenty years ago. I don't think it is
14 relevant today.

15 MR. REGAN: The conviction of an innocent
16 man is a horrible injustice, and I'd ask you not to do that.

17 So let's take the measuring stick of beyond a reasonable
18 doubt, and let's ask some questions.

19 Let's go back to 2005, this Galbraith boy, some small
20 things, but they add up.

21 Galbraith and Heslop, whoever was in the room was
22 Heslop's size. Mr. Moore wasn't Heslop's size.

23 Whoever was in the room was wearing glasses. He didn't
24 have glasses.

25 Whoever was in room had a Night Stalker shirt on. He

1 never wore one. He never owned one. That kind of adds up.

2 Now, to find him guilty of that stuff is to call Dr. Mark
3 Childress a liar. That guy is a doctor. He's a volunteer.
4 He's got no axe to grind in this case. Why would you call him
5 a liar? Because what he says, and he stood up to a skilled
6 cross-examination of my learned opponent over here, "This guy
7 was sick. He had the flu. He had bile running out of both
8 ends." And he never left the room for any appreciable period
9 of time. Is that man going to go snooping around at night for
10 sexual gratification? Is that even physically possible? Dr.
11 Childress said, "No."

12 Now, there was a comment from one of the State's
13 witnesses that Childress said he left the room a time or two,
14 but he left this room here to go to the bathroom. You heard
15 from Dr. Childress yesterday, and we had to call him by the
16 way. The State didn't choose to call him. If they wanted to
17 give you the whole story, they should have called him. He
18 never left here until six o'clock. He heard yelling to go see
19 what that was all about at six.

20 If you distill Galbraith's testimony, what he tells you
21 is the unknown man was in the room at 1:30. Scott Moore came
22 around at six. That's never been contested that Mr. Moore
23 came in to see what was the yelling about. That's a big
24 thing.

25 The kid tells you all under oath, "I never wore such a

1 shirt," and we bring a former legislator in, and her church
2 work, and she said, "Yeah, he said he wore that shirt." There
3 was some explanation about why. But why would he lie about
4 that? It kind of adds up. It kind of compounds this
5 reasonable doubt.

6 With Nick Koch, why would he deny having this
7 disagreement with Mr. Moore? What's he hiding? I don't know
8 what he's hiding, and I don't know why.

9 Now, what you've been asked to do is use your common
10 sense and life experience in coming to your verdict in this
11 case.

12 If you look at the instructions, I believe it's
13 Instruction No. 6 that says: If you find the State has not
14 proved its case beyond a reasonable doubt as to each count and
15 each element is not proven, then you must render a verdict of
16 not guilty.

17 It doesn't say "you may." It doesn't say "you can." It
18 doesn't say "you could" or "you might." It says "you must."
19 You must.

20 Now, you've heard from these two big witnesses against
21 him. I think they are Jordan Galbraith and Nick Koch. And
22 using common sense, I'd ask you to think about this:

23 Would you make a major life decision based on something
24 they told you? Would you buy a house from them, a mortgage, a
25 product from them, an investment plan from them, or let them

1 watch your own children or grandchildren? And if you
2 wouldn't, I'd submit you should not render a verdict that
3 would ruin my client's life based on it. To find Mr. Moore
4 guilty is also to say that his family is lying.

5 Now, the prosecutor may get you later, and it's kind of
6 common in prosecutorial argument to say: Well, of course his
7 family is going to come in here and say whatever is necessary
8 to defend the family.

9 Well, that's fine, but the State has unlimited resources
10 to prove anything they said that was untruthful. You've seen
11 the power of the State in this case with what they brought
12 before you and the resources they spent on this case. I
13 submit to you that there's been no lies told to you by these
14 folks from the Moore family.

15 MS. RASMUSSEN: Your Honor, I'm going to
16 object. He's commenting on the credibility of witnesses
17 blatantly. I've kept my mouth shut for quite a while about
18 it.

19 THE COURT: Sustained.

20 MR. REGAN: There's been no evidence that
21 the Moores have been lying to you.

22 Now, you might say: Well, what do you think of this
23 family's testimony? I submit to you that when allegations of
24 this nature are made against you in your own home, all you
25 have is your family. You can't call folks across the street

1 that didn't see anything. All you can call is your family,
2 and all you can do ask them to look the jury right in the eye
3 and tell them when you saw and heard.

4 Now, Sue Moore testified under oath that this boy did not
5 spend any night on Christmas break. She was certain of that
6 because of the family's schedule and activities of the family
7 that month. If you believe that, Count I didn't happen.

8 Preston Moore said he remembers vividly from his own
9 schedule and activities of that month that Nick didn't spend
10 the night that month. If you believe that, that count didn't
11 occur.

12 Now, when you get -- if you look at the instructions the
13 Judge has given to you and that you'll read in your
14 deliberations, there's an instruction that talks about what
15 you can consider this other crime of evidence for --

16 THE COURT: Five minutes.

17 MR. REGAN: Thank you.

18 It talks about intent, motive, opportunity, things like
19 that. I would submit to you that there aren't similarities
20 sufficient to consider that evidence of Scott Moore. There
21 was no camera alleged to have been used. There was no
22 flashlight alleged to have been used in living room.

23 Now, you've got to remember, folks, there was this common
24 thread. How does Nick Koch's testimony come about? He went
25 home, and I think something bad happened. Mom tells you,

1 "Well, these other things happened in the camp I heard about
2 in 2005, 2006." Okay. Then I think something else happened
3 to me Christmastime last year. Let's go see the police, and
4 there was testimony that these kids, that there's a thread of
5 rumor, a common thread of rumor throughout all this. You
6 can't convict a man based on rumor. You just can't. It's not
7 appropriate.

8 When you get to this other evidence, the prosecutor in
9 Linn County refused to prosecute the case. If he found that
10 there was probable cause, he could have filed the case, but he
11 didn't. Is that because he didn't think things probably
12 happened or didn't think things probably happened? I don't
13 know. But he could have responded to allegations, and he
14 chose not to.

15 In this case, the State of Kansas over here, two counties
16 over, and decides to take the case that someone else decided
17 not to file and asks you all to find my client guilty of. I
18 don't believe that's fair.

19 Now, we've worked as hard as we can to give you all the
20 evidence and facts that are relevant. The Judge has been fair
21 to both sides of this case. Now it's your turn to get to
22 work. If you hold that yardstick up beyond any reasonable
23 doubt, I submit to you that my client is not guilty, and the
24 evidence is compelling to tell you that. It's been my
25 pleasure trying this case in your courtroom, Your Honor.

1 My client's life and fate is now in your hands. I hope and
2 pray and trust that you judge him and wisely. I wish you
3 patience and wisdom in your deliberations. Good day and God
4 bless you.

5 THE COURT: Ms. Rasmussen, you have six
6 minutes.

7 MS. RASMUSSEN: Thank you, Your Honor.

8 Your job in this case is to determine if the defendant is
9 guilty of the crimes that are charged and occurred in Johnson
10 County, Kansas. Those are the crimes involving Nick Koch.

11 Let me tell you, Count I is actually the crime that
12 occurred in May of 2010. Count II is looking back to the
13 crime that occurred in December of 2009.

14 The instructions very clearly state when they lay out the
15 elements, Count I, May 2010; Count II, December of 2009.

16 So we're going to go in the order that the counts are
17 charged in response to some of the things Mr. Regan said.

18 I'd like to point out to you, according to Mr. Regan's
19 own statement, there had never been anything improper, any
20 issues in the relationship with Nick Koch and the defendant,
21 no issues whatsoever in the relationship.

22 So Mr. Regan wants you to believe that there was some
23 argument in the car. That argument didn't happen.

24 Sue Moore wasn't even in the car. There was no argument
25 testified to by Nick Koch and Marcus, Marcus Blanckensee.

1 Nick Koch said actually, "No, an argument didn't happen.
2 There wasn't an argument."

3 So now look at the testimony, even after defense
4 witnesses have testified. After this supposed argument that
5 occurred where Nick was so upset that he was going to
6 fabricate the grandest of stories to get Mr. Moore in trouble.
7 He is so upset about this that he then asked to stay the night
8 at the Moore home. He's so upset, but he wants to stay the
9 night in the Moore home, and he even has the defendant talk to
10 his mom when negotiating whether or not he would stay the
11 night.

12 Now, the defendant would tell you that he didn't have the
13 opportunity to commit this crime. Of course, you know his
14 son, Preston --

15 MR. REGAN: Can we approach, please?

16 THE COURT: Yes.

17 (Whereupon, the following proceedings were
18 held at the bench outside the presence of the jury.)

19 MR. REGAN: Judge, I believe Counsel just
20 said the defendant would tell.

21 MS. RASMUSSEN: I can rephrase that. If I
22 said "defendant," I will rephrase.

23 MR. REGAN: I believe my opponent just
24 said, "the defendant would tell you," and actually what she
25 said followed by many other comments of her argument. I

1 believe that draws undue attention to my client's refusal to
2 testify, and I think it may well be reversible error. So I
3 believe due to the comment made, I move for a mistrial.

4 MS. RASMUSSEN: I said "defendant," and I
5 meant to say "defense's argument." I was talking about the
6 defense witnesses that testified. It's not reversible error.

7 THE COURT: I'm not going to grant a
8 mistrial at this juncture. I would have you rephrase. Would
9 you like me to repeat the instruction on his right to not
10 testify?

11 MR. REGAN: No, no, I don't.

12 THE COURT: Thank you.

13 (Whereupon, the following proceedings were
14 held away from the bench in the presence of the jury.)

15 MS. RASMUSSEN: So let's talk about the
16 witnesses called by the defense.

17 Preston Moore, he stayed up all night, awake all night
18 just feet away from Nick Koch. He hears everything, yet he
19 only remembers -- or the next thing he remembers after they
20 talked themselves to sleep -- oops, I mean silence. The next
21 thing he remembers is Nick going to leave in the middle of the
22 night. There was a phone call made to Nick's mom. He didn't
23 hear that, but awake all night.

24 Susan who had graduation that was so tired that she fell
25 asleep and goes to bed and stays awake all night. Yet the

1 next thing she hears is Nick, or the front door unlocking and
2 Nick leaving. She doesn't hear Nick going up the stairs to
3 make the phone call.

4 Did they not discuss this phone call Nick necessarily had
5 to make during their family meeting, or did they go to sleep
6 that night just as Nick Koch said.

7 Now, let's go to 2009. Nick stayed the night. Lori Koch
8 testified he stayed the night the first night of break.

9 Now, the Moore family, the family does that doesn't
10 sleep, has a very busy Christmas, very busy Christmas holiday.
11 Why now?

12 Mysteriously the one night that no one knows what the
13 Moore family was doing was the one night that Lori Koch says
14 "That's the night my son went over there." The first night
15 after finals, that Friday night Nick stayed the night.

16 This argument that Nick wasn't touched, you're going to
17 get an instruction that says you can use your common knowledge
18 and experience.

19 Well, Nick said he was touched. Nick testified he was
20 touched, but you also can use your common sense.

21 Unless Nick was levitating over the couch, wouldn't the
22 defendant have to touch him to put his hands between Nick's
23 groin and the couch cushions? All a big mistake? No. The
24 exact same as 2005, 2006.

25 The State doesn't have to prove to you what happened in

1 2005 and 2006. You can use evidence of that in looking at the
2 elements and the claims that the State must prove.

3 When Mr. Regan is talking about this camera, wouldn't
4 there be pictures on this camera? Nick Koch never testified
5 he took pictures. He said he heard what sounded like a camera
6 flash.

7 THE COURT: One minute.

8 MS. RASMUSSEN: He didn't see a camera
9 used. In every single case there is light used in a dark
10 room.

11 What's the purpose of this in this defendant's modus
12 operandi, his method of operation? Is it to spotlight the
13 victims and blind them temporarily so they can't identify him
14 in the dark when they open their eyes? Is this to ensure that
15 they are awake or they are asleep before he perpetrates his
16 crimes on them? The State doesn't have to answer that.

17 What the State has to show are the elements of the two
18 counts the defendant is charged with. You can use your common
19 sense. There's going to be an instruction on intent. What
20 other reason is there to touch Nick Koch's penis on two
21 separate occasions but for a sexual intent? What other
22 reasonable explanation is there?

23 We would submit to you that we have proven each claim
24 that we must prove beyond a reasonable doubt, and we are
25 asking that you find the defendant guilty.

1 (Whereupon, the bailiff was sworn.)

2 THE COURT: The jury is now excused to
3 deliberate in the jury room and reach a decision. Please
4 stand for the jury.

5 (Whereupon, the jury left the courtroom at
6 10:15 a.m., to deliberate. Proceedings resumed at 11:20 a.m.,
7 without the presence of the jury.)

8 THE COURT: We are on the record in the
9 State of Kansas versus Scott P. Moore 10CR2633. Parties
10 appear as before, including the defendant with Mr. Regan. We
11 are outside the presence of the jury.

12 The case has been submitted to them. They now have a
13 question. They have written and sent it out. Ms. Nelson has
14 given it to me. The question is: Is there a written
15 statement for Jordan Galbraith?

16 And, Counsel, I asked for your input regarding this. It
17 seemed to me that the correct answer would be that all the
18 evidence has been submitted for their deliberations, but I'd
19 ask for your input regarding that.

20 MS. RASMUSSEN: The State is fine with that
21 answer, Your Honor.

22 MR. REGAN: We are too.

23 THE COURT: Stay close, and I will send
24 this back, and we'll mark this and keep it for record
25 purposes, but I will direct them back to the evidence and all

1 the evidence that's been submitted.

2 MR. REGAN: May I inquire who wrote the
3 question?

4 THE COURT: It was not signed by them, no.
5 Okay. Anything further, Counsel?

6 MS. RASMUSSEN: Are you going to give them
7 that answer on the record?

8 THE COURT: No. I will write it and send
9 it back to them and sign it and mark it.

10 MS. RASMUSSEN: As long as the defense has
11 no objection.

12 MR. REGAN: That's fine with us.

13 THE COURT: Okay. We'll stand in recess.

14 (Whereupon, Court was recessed at 11:22
15 a.m., while the jury deliberated, and proceedings resumed at
16 1:15 p.m., without the presence of the jury.)

17 THE COURT: We are back in the courtroom in
18 the State of Kansas versus Scott P. Moore, 10CR2633. Parties
19 appear as before, including Mr. Moore with his counsel. We
20 are outside the presence of the jury.

21 They have been deliberating. They have sent out a
22 question, which I will read into the record. "May we watch
23 State's Exhibit 2?"

24 I will ask you all for your input for the record. Ms.
25 Rasmussen?

1 MS. RASMUSSEN: Obviously, the State has no
2 objection to them watching the evidence.

3 THE COURT: Mr. Regan?

4 MR. REGAN: I think it's appropriate for
5 the jury to review an exhibit that's been admitted into
6 evidence.

7 THE COURT: Does your client want to be a
8 part of that with them reviewing the evidence?

9 MR. REGAN: Judge, as far as I'm concerned,
10 we don't need to be present while watching the tape.

11 THE COURT: Do you agree with that, Mr.
12 Moore?

13 THE DEFENDANT: I guess so.

14 THE COURT: Okay. I will send this back,
15 and Ms. Nelson will take this to the jury, and I have a
16 docket, and we'll just juggle between the cases, if they have
17 another question, and we'll take a break with the cases that I
18 have, and we'll send the question back with a "Yes."

19 Anything to add, Counsel?

20 MS. RASMUSSEN: Nothing.

21 MR. REGAN: No, ma'am.

22 THE COURT: Thank you very much.

23 (Whereupon, Court recessed at 1:25 p.m.,
24 while the jury deliberated until 2:45 p.m.)

25 THE COURT: We are back on the record in

1 State of Kansas versus Scott P. Moore, 10CR2633. Parties
2 appear as before, including the defendant with his counsel,
3 Mr. Regan. The jury is in place. They have been deliberating
4 today, and it's my understanding that you all now have a
5 verdict; is that correct? I see a head nodding.

6 Would the presiding juror elected by the jury please
7 stand.

8 And you are Mr. Schmidgall; is that correct?

9 PRESIDING JUROR: That's correct.

10 THE COURT: Would you please hand the
11 verdict to Ms. Nelson.

12 I will now read the verdict into the record:

13 Count I, we the jury, find the defendant guilty of sexual
14 battery.

15 Count II, we the jury, find the defendant not guilty of
16 sexual battery. Is this the verdict of each you?

17 Mr. Regan, do you wish the jury polled?

18 MR. REGAN: Please.

19 THE COURT: Ms. Reynolds, is this your
20 verdict?

21 MS. REYNOLDS: Yes, it is.

22 THE COURT: Mr. Schulte, is this your
23 verdict?

24 MR. SCHULTE: Yes, it is.

25 THE COURT: Mr. Giffen, is this your

1 verdict?

2 MR. GIFFEN: Yes.

3 THE COURT: Ms. Beckemeier, is this your

4 verdict?

5 MS. BECKEMEIER: Yes.

6 THE COURT: Ms. Chatterton, is this your

7 verdict?

8 MS. CHATTERTON: Yes.

9 THE COURT: Mr. Schmidgall, is this your

10 verdict?

11 MR. SCHMIDGALL: Yes.

12 THE COURT: Thank you very much.

13 Ladies and gentlemen of the jury, I wish to express the
14 appreciation of this Court and the State of Kansas for your
15 service in this matter. I understand it's often a hardship
16 and inconvenience for you to serve as a juror, but by doing so
17 you are, in fact, performing a right that many of the people
18 of the world do not have. You have been attentive. You have
19 been conscientious throughout the case, and I am grateful for
20 your cooperation. You have now completed your duty as jurors
21 in this case, and you are discharged.

22 The question may arise whether you may discuss the case
23 with the lawyers who presented it to you. For your guidance
24 the Court instructs you that whether you talk to anyone is
25 entirely your own decision. It is proper for the attorneys to

1 discuss the case with you and for you to talk with them, but
2 you need not.

3 If you talk with them, you may tell them as much or as
4 little about the deliberations or the facts that influenced
5 your decision as you wish.

6 If any attorney persists in discussing the case above
7 your objections or becomes critical of your services, please
8 report it to me immediately.

9 A few years ago the District Court here in Johnson County
10 began distributing questionnaires to jurors to see if we could
11 get some feedback about things that we do right and things we
12 might need to improve on. It's just a questionnaire, a few
13 questions. It's completely voluntary. If you have a few
14 minutes, fill it out. If you don't want to, you don't have
15 to.

16 At this time, you are dismissed. You will retire once
17 more to the jury room. You will meet with Ms. Nelson
18 regarding your vouchers regarding compensation for jury duty.
19 Once again, thank you very much. Please rise for the jury.

20 (Whereupon, the jury left the courtroom at
21 2:50 p.m.)

22 THE COURT: Please be seated.

23 We are outside the presence of the jury and back on the
24 record. The defendant appears as before with his attorney,
25 Mr. Regan. The jury has now retired, and I'm going to set the

1 case over for sentencing and post-trial motions, if the
2 defense wishes to file any. I'm going order a presentence
3 investigation, as well as a sex offender evaluation. How
4 about March 28th at eleven?

5 MR. REGAN: That works for us, Judge.

6 MS. RASMUSSEN: That's fine with the State,
7 Your Honor.

8 THE COURT: The defendant will be ordered
9 to appear on March 28th at eleven o'clock.

10 MR. REGAN: Judge, can we have the maximum
11 allowable additional days for filing that motion for new
12 trial?

13 THE COURT: Yes, how many would you like?

14 MR. REGAN: Fifteen is the max; is that
15 right?

16 THE COURT: Yes.

17 MR. REGAN: So a total of twenty-five days
18 from today?

19 THE COURT: Yes.

20 MR. REGAN: Regarding the sex offender
21 evaluation, I believe it was during the pretrial matters in
22 this case. There was one done, and I believe it was post
23 Boston. Will that suffice?

24 THE COURT: It was post --

25 MR. REGAN: Boston.

1 THE COURT: When was it done?

2 MS. RASMUSSEN: I believe it was done right
3 around the time of Boston. I don't know if it would have been
4 done a week before or the week after when the report was
5 received. I think it was listed as a psychological
6 evaluation. I know I didn't have -- and I don't want to speak
7 for them now. I don't think it had a Static 99, the testing,
8 anything specific. But it was a very thorough psychological
9 evaluation that Mr. Regan did give me as part of the
10 negotiation back then. It happened right around Boston.

11 THE COURT: Why don't you provide that to
12 the Court. If I determine we need an updated one, I'll let
13 you know right away and take a look and see if that's
14 sufficient.

15 MR. REGAN: Very good. I will also ask,
16 Judge, that the bond continue. My client always made court
17 appearances.

18 THE COURT: Any objection?

19 MS. RASMUSSEN: No. He has always made
20 court appearances. One thing I would note now is that under a
21 conviction under the sex offender registration laws, the
22 defendant should be advised of his duty to register. Having
23 been convicted, I don't have one of our sheets with us, but
24 I'm sure I can get one, if it's allowed to be used, because I
25 believe the registration requirements begin immediately.

1 MR. REGAN: Is that not tolled until
2 sentencing?

3 THE COURT: No.

4 MR. REGAN: How about notice of appeal?

5 THE COURT: That is tolled until
6 sentencing, but the duty to register has changed, and he needs
7 to do that upon plea or conviction.

8 MR. REGAN: Is there a conviction prior to
9 sentencing -- considered prior to sentencing?

10 THE COURT: Yes, for purposes of the
11 registration, yes.

12 MR. REGAN: And at sentencing, if notice of
13 appeal is filed at that juncture, is that tolled once again?

14 THE COURT: No. If you can wait, Ms.
15 Rasmussen, since the duty is today, if you will get the form
16 and do that today while the defendant is here to help him get
17 that done, I would appreciate that.

18 MS. RASMUSSEN: We will do that right now.

19 THE COURT: Bond will be continued as
20 before. He'll be released from his prior bond.

21 MR. REGAN: Thank you. Should he now
22 report? Do you have a bench note?

23 THE COURT: I will get you the order for
24 the PSI. And the exhibits, I'm going to ask that the State
25 retain all exhibits for appellate purposes.

1 MS. RASMUSSEN: We can do that, Your Honor.
2 I don't know if the jurors are still back there, but we would
3 certainly welcome the opportunity to talk with them, if they
4 are willing to speak with us.

5 THE COURT: I will ask them.

6 MR. REGAN: What I was going to do to
7 protect the record, and we can do it at sentencing, I was
8 going to take every exhibit that was in evidence that the jury
9 saw, big enlargements. We have eight by tens, and we are
10 going to try to make a record for appellate purposes and make
11 smaller ones that the smaller ones will suffice for the
12 record. We can do that by stipulation at sentencing.

13 THE COURT: I would be okay with that.
14 Check with Ms. Rasmussen, and we can all do that.

15 MS. RASMUSSEN: Terrific.

16 THE COURT: Counsel, you both did a
17 terrific job. I appreciate your hard work, and we will be
18 adjourned for today.

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C E R T I F I C A T E

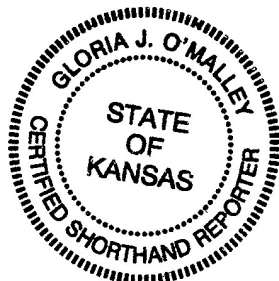
STATE OF KANSAS)

JOHNSON COUNTY)

I, Gloria J. O'Malley, a certified shorthand reporter, and the regularly appointed, qualified, and Acting Official Reporter of Division No. 13 of the Tenth Judicial District of the State of Kansas, do hereby certify that as such Official Reporter, I was present at and reported in machine shorthand the above and foregoing proceedings.

I further certify that a transcript of my shorthand notes was typed, and that the foregoing transcript is a true and correct transcript of my notes in said case to the best of my knowledge and ability,

SIGNED, OFFICIALLY SEALED, AND FILED
WITH THE CLERK OF THE DISTRICT COURT OF JOHNSON COUNTY
KANSAS.



Gloria J. O'Malley
Gloria J. O'Malley, CSR No. 1383